Casper@abtsthedunes.com

HPHOA5 - Notice of Violation & Assessment (Chen-6315 Ocean Avenue North)

Edward Chen

Huan Zhang;**+2 others**

From: Edward Chen <edchenstudio@hotmail.com>

Sent: Saturday, August 23, 2025 9:37 PM

To: BELINDA WHITE <Ba0651@aol.com>

Cc: edchenstudio2020@gmail.com <edchenstudio2020@gmail.com>

Subject: Fw: HPHOA5 - Notice of Violation & Assessment (Chen-6315 Ocean Avenue North)

From: Edward Chen <edchenstudio@hotmail.com>

Sent: Friday, November 3, 2023 1:12 PM

To: JeanMarie DaSilva <jdasilva@benjamindevco.com>; BELINDA WHITE <Ba0651@aol.com>; casper@abtsthedunes.com <casper@abtsthedunes.com>; edchenstudio2020@gmail.com <edchenstudio2020@gmail.com>; Huan Zhang <huan0452@gmail.com>; Ed Chen <chenstudiopro@gmail.com>

Subject: Re: HPHOA5 - Notice of Violation & Assessment (Chen-6315 Ocean Avenue North)

Dear JeanMarie:

It is saying, "We appreciate your prompt attention to this matter and ask your cooperation in contacting Wen Management at(516)745-0150 within three (3) days of receiving this notice. Failure to contact Wen Management will result in the above-mentioned fine being imposed.

How are you, JeanMarie? I called you about this matter, but because of the rainy days, I could only fix my yard on Saturday or Sunday, and we agreed with it.

Hi, JeanMarie, you are the Office Manager for our HOA. At first, I sent many emails with evidence and photos to you and our board members of HOA. I proved that I did have nothing wrong, and I did the job and cleaned the yard, and it was confirmed by Belinda White's(9/30/2023). Because I did my job of cleaning my yard to meet the requirements of HOA's bylaws under our agreement(9/29/2023) on the phone). I am utterly appalled and deeply offended by these unjustified and outrageous fees imposed upon me, leaving me in a state of distress. This is very wrong because it isn't logically correct and it is illegal. My legal rights as a house owner are totally protected by laws.

Did you call Belinda White to confirm my actions in order to fix the billing error? This is always your responsibility to keep your promise for the job in this case.

"Attached is a copy of your updated ledger. The Board has closed out all of your violations, but you are responsible for fines on the account. Therefore, the amount due is correct." I studied what you said in this sentence. You just stated that I did a good job of cleaning the violations, but HOA still charged me and I am responsible for the charges in another way. Then, what are you talking about? I just cut my seasonal sunflowers and their plants.

Then, what kind of violation are you talking about?

Now you just charged me for something that didn't exist. When I cut all the flowers and plants on Sept 30, your office was closed on the weekend and Casper refused to come, but only Belinda White came and did her job as a HOA Board member.

I have all the pictures and video and your violation letters and email as evidence to prove my actions.

I wrote you many emails, but you have never replied to me with a single email.

Yes, you have treated me in the same manner in the last 8 years.

Every year and every time, I fixed your "violations", and you just continued to charge for non-existing violations. If you don't reply me letters or emails, you should not send me any HOA "violations" notice.

It is saying, "We appreciate your prompt attention to this matter and ask your cooperation in contacting Wen Management at(516)745-0150 within three (3) days of receiving this notice. Failure to contact Wen Management will result in the above-mentioned fine being imposed."

What did you do to me? It was very shameful.

Sincerely!

ed

From: Edward Chen <edchenstudio@hotmail.com>
Sent: Friday, October 27, 2023 10:25 AM
To: JeanMarie DaSilva <jdasilva@benjamindevco.com>; BELINDA WHITE <Ba0651@aol.com>; casper@abtsthedunes.com; edchenstudio2020@gmail.com; Huan Zhang <huan0452@gmail.com>; Ed Chen <chenstudiopro@gmail.com>
Subject: Re: HPHOA5 - Notice of Violation & Assessment (Chen-6315 Ocean Avenue North)

External Email: Use caution when clicking on links or opening attachments.

Dear JeanMarie,

Good morning,

Today is Friday two days after I called and email you, I am still waiting for your response for the charge of my account that I have questions about, and you told me that you need to wait one day for the answer.

please,

sincerely!

ed

From: Edward Chen <edchenstudio@hotmail.com>
Sent: Wednesday, October 25, 2023 2:06 AM
To: JeanMarie DaSilva <jdasilva@benjamindevco.com>; BELINDA WHITE <Ba0651@aol.com>; casper@abtsthedunes.com <casper@abtsthedunes.com>;

edchenstudio2020@gmail.com <edchenstudio2020@gmail.com>; Huan Zhang <huan0452@gmail.com>; Ed Chen <chenstudiopro@gmail.com>
Subject: Re: HPHOA5 - Notice of Violation & Assessment (Chen-6315 Ocean Avenue North)

Hi, JeanMarie,

today, I opened my mailbox, and I found your mail.

I read the bill, and you charged me $2300.

What is it? Please explain to me.

The very last letter you sent me was from on Sept 28 because the mailman delivered to my mailbox instead of my front door.

I called you about this matter, but because of the rainy days, I could only fix my yard on Saturday or Sunday and we agreed with it.
In the letter, it said if I fixed the issue within three business days, it could be ok without fine.
I did it. I sent the photos to you on the following Monday, 10/2/2023. I asked Belinda White to prove it.

But right now, you still charged me $2300,.....?

Of the picture you sent to me(It couldn't tell or prove that this was my house), there were several bugs on the wall and they came from the park where we live. Since the HOA didn't kill the bugs in the park next to where I live, they lived everywhere. We all suffered from the bugs' problem. You could ask anyone about the problem and they would tell you the same issue around their houses. If you walked in the park, bugs stayed on your hands and neck and legs anywhere. This was my true experience because I walked into the park with short plant and tried to find out the fact. But you used the wrong photo against the wrong person with the non related facts.

Of my front drive way, there are many died plants last over 4 years and HOA have never cared, and it was not replaced with new plants.

It was terrible, and ugly, but I continued to pay for the maintenance fee with nonstop payments. This was why I put some flowers seeds on, and it grew beautifully, and I believed that natural beauty would not harm anyone. This is natural beauty.

On, July 13, we visited Italy and we came back at July 28, because we missed the airplane on July 27 on Italy airport. As a result, we have never received any notice or letter until we came back from the trips.

Now I knew you sent me some notice or letters during my trip. Should I take full responsibility or actions during our family trip without know anything what your HOA stated on the unknow letter?

During the period of time of my family trip, Lynn destroyed partial of my garden and she continued to destroy my garden partially after we came back. I made a recording on the video and sent them to you for complaints but I had never gotten any feedback from HOA. HOA did nothing. The question is whether HOA allow Lynn to destroy my property. Please answer me. Yes, You did it.

My yard's issue was only having over grown seasonal flowers, and they are so beautiful, and I just cut them off. The issue was fixed.

Then, suddenly you were pointing the finger to me saying that I put the food all over my yard.....and created the fine.

I have never done so, and I cut all the plants to show you what it is. It is very clean. All I have are just seasonal flowers. What kind of foods anywhere are you talking about?

Now it is your term to prove what you said and what you did and explained to me clearly why you did so.

I did everything to fix what you requested within limited times, 3 business days and send you pictures to prove on the Monday, 10/2/2023 within our agreements under the raining conditions.

Could you tell me who and where and how and when you take the photos?

What is the relationship with the bug on the window and my yard? How could you have such a conclusion and the fine?

The fact is all the rats and bugs running on the park and the houses next to the park last as long as our neighborhood was created and it happened to New York City, and it is a well know issue to New Yorkers.

We paid for HOA every single month $192 as maintenance fee. Did HOA kill one of them? But all you did is trying to put your finger to any dislike neighbors, and told them you saw the bugs or rats in their houses. As a result, they would be punished and got a big fine. The fact is that all the bugs and rats running yard to yard and house to house from time to time. This is common sense that no one creates bugs and rats, and they live in nature as like we do in anywhere. This is what we call natural lives, and all the creatures live in the earth naturally and equally. If you want to destroy them, HOA have to do it because we already paid for HOA to do so. Don't you know the fact or understand it?

sincerely!

ed

Confirmation

Thank you for choosing to fly Norse! We can't wait to welcome you onboard

Confirmation number

SDZTYX

New York - JFK (JFK) to Fiumicino (FCO)

Manage reservation

Departing flight

Thu, 13 Jul **00:30 JFK** **15:15 FCO** 8 hours 45 minutes

Economy Cabin, Economy Light
Flight N0402
Operated by Norse Atlantic Airways AS

Departing flight

Thu, 27 Jul **18:55 FCO** → **22:30 JFK** 9 hours 35 minutes

Economy Cabin, Economy Light
Flight N0401
Operated by Norse Atlantic Airways AS

Passenger Details

GUO HUA CHEN

Flight	JFK - FCO	**Flight**	FCO - JFK
Seat	21J	**Seat**	29J
Bags		**Bags**	

HUAN YUAN ZHANG

Flight	JFK - FCO	**Flight**	FCO - JFK
Seat	21H	**Seat**	29H
Bags		**Bags**	

ZHI JIE CHEN

Flight	JFK - FCO	**Flight**	FCO - JFK
Seat	22J	**Seat**	30J
Bags		**Bags**	

ZHI HENG HENRY CHEN

Flight	JFK - FCO	**Flight**	FCO - JFK
Seat	22H	**Seat**	30H
Bags		**Bags**	

rom: Edward Chen <edchenstudio@hotmail.com>
Sent: Friday, September 29, 2023 3:02 PM
To: JeanMarie DaSilva <jdasilva@benjamindevco.com>; BELINDA WHITE <Ba0651@aol.com>; casper@abtsthedunes.com <casper@abtsthedunes.com>; edchenstudio2020@gmail.com <edchenstudio2020@gmail.com>
Subject: Re: HPHOA5 - Notice of Violation & Assessment (Chen-6315 Ocean Avenue North)

Dear JeanMarie DaSilva:

again,

"These were valid photos taken by the Board of the unsanitary conditions in your yard…with food scraps all over the ground, as well as flies all over your house, and your neighbors," this is a totally misleading statement for what it stated.

This is a big lie from Lynn, and this is terrible, and I keep my rights to lawsuit her.

Yes, please come to my home, and we can prove it.

Lynn attacked my property and killed my plants and made a big lie to the Board. I have all the video to prove it.

"the unsanitary conditions in your yard…with food scraps " This is a terrible attacked statement. Please prove it.

This is totally a very false statement. Please prove for what you stated.

This is a very wrong statement. How could you discriminate me year by year and day by day?

I need to set up an appointment to speak with the Board members to solve this problem, Please.

As I told you, JeanMarie, I am going to removal of a minimum of 40% of the tall, dense greenery.(this Sunday if without rain).

JeanMarie, you saw the photos I took this morning, what " food scraps" they are talking about? Why could they make it up?

please, speak out the fact and don't discriminate me all the time. Stop please! all my yard just grow flowers don't you see it?

looking at my beautiful flowers, how does it harm you? "These were valid photos taken by the Board of the unsanitary conditions in your yard…with food scraps all over the ground" ??????

sincerely!

ed

From:

<jdasilva@benjamindevco.com>
Sent: Friday, September 29, 2023 1:29 PM
To: 'Edward Chen' <edchenstudio@hotmail.com>; BELINDA WHITE <Ba0651@aol.com>; casper@abtsthedunes.com <casper@abtsthedunes.com>; edchenstudio2020@gmail.com <edchenstudio2020@gmail.com>
Subject: RE: HPHOA5 - Notice of Violation & Assessment (Chen-6315 Ocean Avenue North)

Mr. Chen - Please see the Board's response below:

The Board states, "It was saying 'more' than just a fine. The letter was explaining your violation for having food scraps all over your yard causing unsafe and unsanitary conditions."

These were valid photos taken by the Board of the unsanitary conditions in your yard…with food scraps all over the ground, as well as flies all over your house, and your neighbors.

Please advise us when you decide to completely clean up your yard, removing all food scraps, and removal of a minimum of 40% of the tall, dense greenery.

Should you not comply, fines will increase each month and the Board could take measures, necessary, to totally clean out your yard.

JeanMarie DaSilva
Office Manager
The Benjamin Companies
377 Oak Street, Suite 110
Garden City, NY 11530
516-745-0150 (x312) Office
516-745-5607 Fax
www.BenjaminCompanies.com

THE BENJAMIN COMPANIES
PREMIER REAL ESTATE DEVELOPER & MANAGER

From: Edward Chen <edchenstudio@hotmail.com>
Sent: Friday, September 29, 2023 9:41 AM
To: JeanMarie DaSilva <jdasilva@benjamindevco.com>; BELINDA WHITE <Ba0651@aol.com>; casper@abtsthedunes.com; edchenstudio2020@gmail.com
Subject: Re: HPHOA5 - Notice of Violation & Assessment (Chen-6315 Ocean Avenue North)

> External Email: Use caution when clicking on links or opening attachments.

JeanMarie:

hi,

last night(9/28/2023) I opened my mail box, and I received your letter and it was just saying the fine to me again.

yes, the letter was unsigned but delivered to my mail box.

When I saw the pictures on the notice, it was a shock.

The setting on the pictures on your notice is not my yard. Who took these pictures?

I just took some photos of my yard this morning(9/29/2023). They are the photos of my great yard.

sincerely

ed

From: JeanMarie DaSilva <jdasilva@benjamindevco.com>
Sent: Tuesday, September 26, 2023 11:18 AM
To: 'Edward Chen' <edchenstudio@hotmail.com>
Subject: RE: HPHOA5 - Notice of Violation & Assessment (Chen-6315 Ocean Avenue North)

VIA EMAIL & CERTIFIED MAIL/RETURN RECEIPT

Attention: Guo Hua Chen

Please see (2) Notices of Violation & Assessment which require your immediate attention.

Unkept backyard - $400 monthly assessment
Unsanitary conditions rear yard - $500 assessment with $100 increase per month.

Thank you-

JeanMarie DaSilva
Office Manager
The Benjamin Companies
377 Oak Street, Suite 110
Garden City, NY 11530
516-745-0150 (x312) Office
516-745-5607 Fax
www.BenjaminCompanies.com

THE BENJAMIN COMPANIES
PREMIER REAL ESTATE DEVELOPER & MANAGER

ear JeanMarie:

I called you Monday's Morning, and you weren't in the office, but I left you a message to your assistant.

By the way, I studied the billing statements that you sent to me Friday (10/27/2023)that I requested on Wednesday.

Last week, I sent you several letters and last two letters were against about the charges on the bill. Today, I wished you came back office.

On last Wednesday we spoke on the phone, I asked you what the charges on the bill. You told me that you didn't know the facts or the

cause but you asked me to wait one day in order to get the answers. But at the same time when we were talking on the phone, I asked

you whether we agreed with that I could cut my flowers and plants and clean my yard on Sunday(October 1) to avoid the fine because of

the raining days. in this way I tried to reconfirm our agreements on the phone that we made You said, "Yes". I waited for two day, and

asked you by mail again. Finally, you sent me the billing statements of the very recent years. It was very surprising to me on how you

charged me on account and they were very wrong.

As I know that you sent me the HOA violation notices, and you must have responsibilities to answer my questions and correct the errors of

the charges on the billing statements because you manage our HOA accounts and to create the connection between HOA and

homeowners.

I read my HOA 2023 billing statement. 07/12/23 Violation - Sunflowers 100.00 0.00 408.00 08/01/23 Maintenance (08/2023) 192.00 0.00 08/01/23 Violation (08/2023) 100.00 Violation 09/01/23 Maintenance (09/2023) 192.00 0.00 700.00 09/01/23 Violation (09/2023) 100.00 0.00 800.00 09/26/23 Violation - Backyard Food Scraps 500.00 0.00 1,108.00 10/01/23 Maintenance (10/2023) 192.00 0.00 1,300.00 10/01/23 Violation - Backyard 400.00 0.00 1,700.00 10/01/23 Violation - Backyard Food Scraps 600.00 0.00 2,300.00. They are very wrongful charges. How could you charge me for something wasn't existing? I sent HOA a photo of my yard, and it had no sight of any food scraps in the similar position of the yard comparing to the complaint images from HOA 9/29/2023, that I took in the morning 9/29(Friday). I cut all my flowers and cleaned all my yard 9/30/2023 and Belinda White came and she confirmed it. How could HOA charge me for anything wasn't exiting on October 1? yes, I took the photos of my yard at 9/30 and 10/01/2023, and sent them out 10/2/2023 to JeanMarie, because I could only send the photos to JeanMarie 10/2/2023, Monday, but not the weekend, and the office was closed. This is the issue that you wrongfully charged on my bill against our agreements and the facts.

Today it is November 1, Please answer me. If I made any mistakes on this matter, please point them out and call me in order to solve the problem.

I am still waiting for your answers to my questions.

Yes, I request the meeting with Casper three times, but he just ignored me completely.

But right now, I just requested one more time for the meeting with Casper after I requested three times attempts in a row.

Please read it carefully as what it stated on the violation notice.

On the violation letter, It is saying, "We appreciate your prompt attention to this matter and ask your cooperation in contacting Wen Management at(516)745-0150 within three (3) days of receiving this notice. Failure to contact Wen Management will result in the above-mentioned fine being imposed."

????

Sincerely!
ed

Edward Chen

You;**+6 others**

Dear Casper:

How are you? Qin is one of the board members in HOA for years.

Don't you see many photos(I took them at 10/25) coming from the view of Qin's home yard . I took Qin's home yard photos every year, and I realized that they were almost the same when I made a comparison of them. Learning from the view of the scene, we are able to see that a peach tree and a grape tree with support net almost occupies the whole home yard. Especially, the peach tree extending outside of the yard into the common area. Also, they are 6 feet high. There are great violations with HOA's bylaw definition all the years?

Casper, you should know it very well. It is a common sense what the board members did is giving out the standard guidelines and value to the whole community to follow, am I right? This is what I did and I followed him. Many HOA people did the something and violated the HOA bylaws if you walked into our neighborhood and you saw. I just believed that "if he can do it, and I can do the same." Actually, HOA's Bylaws should be fair and the same rules for every homeowner to follow. None can use it as a discriminated tool to hate others.

However, all I had was only the seasonal flowers and they grew from July and died at November. They always open beautiful flowers at September by season, and I believed the nature flowers' beautiful what we need. I had this flower plants last year and this year they just regrew by nature even though they died seasonally after November, 2022 . After I received the violation notice, I cut all the flower plants at Sept 29 2022 and Sept 30 2023 in order to meet the requirements and avoid the charges. I told Belinda White and she came to visited and confirmed it. How did my beautiful flowers and temporary plants harm the community? HOA charged my account from 07/22/22 Violation - Yard 100.00, 08/01/22 Violation - Yard 100.00 0.00 09/01/22 Violation (09/2022) 100.00 0.00 10/01/22 Violation (10/2022) 100.0011/01/22 Violation (11/2022) 100.00. I disagreed with the charges because you discriminated me unfairly, and I wrote the email against the charges by the time. But I got no response. In addition, I learned my bill statement, and I

specially found out that HOA continued to charged me for October and November 2022, even though I cut my flowers and cleaned my yard at Sept 29 2022 to meet the requirements of the HOA violation notices.

How could you do that?

I read my HOA 2023 billing statement. 07/12/23 Violation - Sunflowers 100.00 0.00 408.00 08/01/23 Maintenance (08/2023) 192.00 0.00 08/01/23 Violation (08/2023) 100.00 Violation 09/01/23 Maintenance (09/2023) 192.00 0.00 700.00 09/01/23 Violation (09/2023) 100.00 0.00 800.00 09/26/23 Violation - Backyard Food Scraps 500.00 0.00 1,108.00 10/01/23 Maintenance (10/2023) 192.00 0.00 1,300.00 10/01/23 Violation - Backyard 400.00 0.00 1,700.00 10/01/23 Violation - Backyard Food Scraps 600.00 0.00 2,300.00. They are very wrongful charges. How could you charge me for something wasn't existing? I sent HOA a photo of my yard, and it had no sight of any food scraps in the similar position of the yard comparing to the complaint images from HOA 9/29/2023, that I took in the morning 9/29(Friday). I cut all my flowers and cleaned all my yard 9/30/2023 and Belinda White came and she confirmed it. How could HOA charge me for anything wasn't exiting on October 1? yes, I took the photos of my yard at 9/30 and 10/01/2023, and sent them out 10/2/2023 to JeanMarie, because I could only send the photos to JeanMarie 10/2/2023, Monday, but not the weekend, and the office was closed.

JeanMarie DaSilva

Office Manager

The Benjamin Companies

377 Oak Street, Suite 110

Garden City, NY 11530

516-745-0150 (x312) Office

516-745-5607 Fax

www.BenjaminCompanies.com

JeanMarie is an office Manager working for HOA, and we agreed with the day to handle the clean during the raining days, and I told her that I could clean my yard on Sunday if no raining, 10/1/2023 by phone. The Saturday Morning (9/30) was raining but the rain stopped at afternoon. Therefore, I cut all the flowers and clean my yard in the afternoon and evening, and Belinda white walked with me to my yard and she confirmed what I did. How could you fine me and charged me by something non-exciting ? It was terribly wrong. Please correct it.

On the violation letter, It is saying, "We appreciate your prompt attention to this matter and ask your cooperation in contacting Wen Management at(516)745-0150 within three (3) days of receiving this notice. Failure to contact Wen Management will result in the above-mentioned fine being imposed.

Could our respectful board members do against HOA's rules and bylaws again and again?

Why? This is discrimination and you only target on me and my family as a houseowner, and you just totally broke my Americans dream, and it just proved that we were living in a very unfair and discriminate community. Please view back the very last Friday Email with all photos I took this week within the attachment. Thank you!

Sincerely!

ed

Edward Chen

caspercacioppo@aol.com;**+6 others**

Dear Casper and JeanMarin:

"I voted to keep fees, as charged, because he does the same thing every year....and he out-and-out lied about the food scraps and flies all over his property and the adjacent property.

However, I defer to Qin and Belinda. "

it was very nice to say so, view these photos, I just took them this week of our great community with a special culture, "I can do it, but you cann't. " A group of white people just target at me over 8 years. This is terrible discrimination.

you knew it well and we spoke about it several years ago when I support you to be a board member, but you just ignored the fact but only target on me right now, and it is very sad.

please view all the photos and maybe one is your home or another board member's home.

what the Justice are you talking about?

if you found out any fake images or photos, please, let me know and I can walk with you and find it out, good deal?

Could you tell me the term of keep and unkeep? or 4 fees high..... bylaws for them or only for me or everyone? or for the white or the colors? You promised to me to fight for the discriminations, but now you just discriminated me and target me very wrongfully.

Please view back and study all my emails carefully. You could have a wonderful picture and understand what I am talking about, yes, you knew it well. but I just remind you.

now I answered your question," because he does the same thing every year...."

because I want you to know that you broke your promise to us, for eight years, the treatments to us have no changes, and every single year I have been suffering for the discrimination. But in fact, many Asian families suffered from the discriminations in this neighborhood as I knew. Lynn destroyed my yard and my property twice, you knew it but you just ignored it because I sent you the videos. But you just said nothing. This is your job and responsibilities to protect your house owners because we paid for HOA and you are one of board members in the HOA.

Sincerely!

ed

From: caspercacioppo@aol.com <caspercacioppo@aol.com>
Sent: Friday, October 27, 2023 11:14 AM
To: Edward Chen <edchenstudio@hotmail.com>; JeanMarie DaSilva <jdasilva@benjamindevco.com>; BELINDA WHITE <Ba0651@aol.com>; casper@abtsthedunes.com <casper@abtsthedunes.com>; edchenstudio2020@gmail.com <edchenstudio2020@gmail.com>; Huan Zhang <huan0452@gmail.com>; Ed Chen <chenstudiopro@gmail.com>
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[Sent from the all new AOL app for iOS]Sent from the all new AOL app for iOS

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Of my front drive way, there are many died plants last over 4 years and HOA have never cared, and it was not replaced with new plants.

It was terrible, and ugly, but I continued to pay for the maintenance fee with nonstop payments. This was why I put some flowers seeds on, and it grew beautifully, and I believed that natural beauty would not harm anyone. This is natural beauty.

On, July 13, we visited Italy and we came back at July 28, because we missed the airplane on July 27 on Italy airport. As a result, we have never received any notice or letter until we came back from the trips.

Now I knew you sent me some notice or letters during my trip. Should I take full responsibility or actions during our family trip without know anything what your HOA stated on the unknow letter?

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My yard's issue was only having over grown seasonal flowers, and they are so beautiful, and I just cut them off. The issue was fixed.

Then, suddenly you were pointing the finger to me saying that I put the food all over my yard.....and created the fine.

I have never done so, and I cut all the plants to show you what it is. It is very clean. All I have are just seasonal flowers. What kind of foods anywhere are you talking about?

Now it is your term to prove what you said and what you did and explained to me clearly why you did so.

I did everything to fix what you requested within limited times, 3 business days and send you pictures to prove on the Monday, 10/2/2023 within our agreements under the raining conditions.

Could you tell me who and where and how and when you take the photos?

What is the relationship with the bug on the window and my yard? How could you have such a conclusion and the fine?

The fact is all the rats and bugs running on the park and the houses next to the park last as long as our neighborhood was created and it happened to New York City, and it is a well know issue to New Yorkers.

We paid for HOA every single month $192 as maintenance fee. Did HOA kill one of them? But all you did is trying to put your finger to any dislike neighbors, and told them you saw the bugs or rats in their houses. As a result, they would be punished and got a big fine. The fact is that all the bugs and rats running yard to yard and house to house from time to time. This is common sense that no one creates bugs and rats, and they live in nature as like we do in anywhere. This is what we call natural lives, and all the creatures live in the earth naturally and equally. If you want to destroy them, HOA have to do it because we already paid for HOA to do so. Don't you know the fact or understand it?

sincerely!

ed

Edward Chen

JeanMarie DaSilva;**+4 others**

I read the HOA letter again and I just copied it to you,

It is saying, "We appreciate your prompt attention to this matter and ask your cooperation in contacting Wen Management at(516)745-0150 within three (3) days of receiving this notice. Failure to contact Wen Management will result in the above-mentioned fine being imposed.

yes, I did call Wen Management and spoke with manage JeanMarin at 10/29 on the phone and communicated by email, and we agreed to fix any issues during the weekend.

I did fixed the problem, and Belinda explained the rule and I did it and she proved what I did.

Now you charged me very wrongfully,

09/26/23 Violation - Backyard Food Scraps 500.00 0.00 1,108.00 10/01/23 Maintenance (10/2023) 192.00 0.00 1,300.00 10/01/23 Violation - Backyard 400.00 0.00 1,700.00 10/01/23 Violation - Backyard Food Scraps 600.00 0.00 2,300.00

Casper, now you voted for the charge, but you did against HOA's rules. I know you are very educated person and I respected and support you on the board in the past.

But now your just discriminated me and broke the HOA's rules, bylaw.

Sincerely!

ed

Edward Chen

JeanMarie DaSilva;**+5 others**

Dear JeanMarie:

I called you Monday's Morning, and you weren't in the office, but I left you a message to your assistant.

By the way, I studied the billing statements that you sent to me Friday (10/27/2023)that I requested on Wednesday.

Last week, I sent you several letters and last two letters were against about the charges on the bill. Today, I wished you came back office.

On last Wednesday we spoke on the phone, I asked you what the charges on the bill. You told me that you didn't know the facts or the

cause but you asked me to wait one day in order to get the answers. But at the same time when we were talking on the phone, I asked

you whether we agreed with that I could cut my flowers and plants and clean my yard on Sunday(October 1) to avoid the fine because of

the raining days. in this way I tried to reconfirm our agreements on the phone that we made You said, "Yes". I waited for two day, and

asked you by mail again. Finally, you sent me the billing statements of the very recent years. It was very surprising to me on how you

charged me on account and they were very wrong.

As I know that you sent me the HOA violation notices, and you must have responsibilities to answer my questions and correct the errors of

the charges on the billing statements because you manage our HOA accounts and to create the connection between HOA and

homeowners.

I read my HOA 2023 billing statement. 07/12/23 Violation - Sunflowers 100.00 0.00 408.00 08/01/23 Maintenance (08/2023) 192.00 0.00 08/01/23 Violation (08/2023) 100.00 Violation 09/01/23 Maintenance (09/2023) 192.00 0.00 700.00 09/01/23 Violation (09/2023) 100.00 0.00 800.00 09/26/23 Violation - Backyard Food Scraps 500.00 0.00 1,108.00 10/01/23 Maintenance (10/2023) 192.00 0.00 1,300.00 10/01/23 Violation - Backyard 400.00 0.00 1,700.00 10/01/23 Violation - Backyard Food Scraps 600.00 0.00 2,300.00. They are very wrongful charges. How could you charge me for something wasn't existing? I sent HOA a photo of my yard, and it had no sight of any food scraps in the similar position of the yard comparing to the complaint images from HOA 9/29/2023, that I took in the morning 9/29(Friday). I cut all my flowers and cleaned all my yard 9/30/2023 and Belinda White came and she confirmed it. How could HOA charge me for anything wasn't exiting on October 1? yes, I took the photos of my yard at 9/30 and 10/01/2023, and sent them out 10/2/2023 to JeanMarie, because I could only send the photos to JeanMarie 10/2/2023, Monday, but not the weekend, and the office was closed. This is the issue that you wrongfully charged on my bill against our agreements and the facts.

Today it is November 1, Please answer me. If I made any mistakes on this matter, please point them out and call me in order to solve the problem.

I am still waiting for your answers to my questions.

Yes, I request the meeting with Casper three times, but he just ignored me completely.

But right now, I just requested one more time for the meeting with Casper after I requested three times attempts in a row.

From: Edward Chen <edchenstudio@hotmail.com>
Sent: Monday, October 30, 2023 2:34 PM
To: JeanMarie DaSilva <jdasilva@benjamindevco.com>; BELINDA WHITE <Ba0651@aol.com>; casper@abtsthedunes.com <casper@abtsthedunes.com>;

edchenstudio2020@gmail.com <edchenstudio2020@gmail.com>; Huan Zhang <huan0452@gmail.com>; Ed Chen <chenstudiopro@gmail.com>
Subject: Re: HPHOA5 - Notice of Violation & Assessment (Chen-6315 Ocean Avenue North)

Dear JeanMarie:

How are you? One again, I requested to make a appointment to meet and speak with a Broad member, Casper recording to the discrimination and the wrongful charge. This is my third time requesting the meeting.

Sincerely!

ed

From: JeanMarie DaSilva <jdasilva@benjamindevco.com>
Sent: Friday, October 27, 2023 10:31 AM
To: 'Edward Chen' <edchenstudio@hotmail.com>; BELINDA WHITE <Ba0651@aol.com>; casper@abtsthedunes.com <casper@abtsthedunes.com>; edchenstudio2020@gmail.com <edchenstudio2020@gmail.com>; Huan Zhang <huan0452@gmail.com>; Ed Chen <chenstudiopro@gmail.com>
Subject: RE: HPHOA5 - Notice of Violation & Assessment (Chen-6315 Ocean Avenue North)

Attached is a copy of your updated ledger. The Board has closed out all of your violations, but you are responsible for fines on the account. Therefore, the amount due is correct.

JeanMarie DaSilva
Office Manager
The Benjamin Companies
377 Oak Street, Suite 110
Garden City, NY 11530
516-745-0150 (x312) Office
516-745-5607 Fax
www.BenjaminCompanies.com

THE BENJAMIN COMPANIES
PREMIER REAL ESTATE DEVELOPER & MANAGER

From: Edward Chen <edchenstudio@hotmail.com>
Sent: Friday, October 27, 2023 10:25 AM
To: JeanMarie DaSilva <jdasilva@benjamindevco.com>; BELINDA WHITE <Ba0651@aol.com>; casper@abtsthedunes.com; edchenstudio2020@gmail.com; Huan Zhang <huan0452@gmail.com>; Ed Chen <chenstudiopro@gmail.com>
Subject: Re: HPHOA5 - Notice of Violation & Assessment (Chen-6315 Ocean Avenue North)

> External Email: Use caution when clicking on links or opening attachments.

Dear JeanMarie,

Good morning,

Today is Friday two days after I called and email you, I am still waiting for your response for the charge of my account that I have questions about, and you told me that you need to wait one day for the answer.

please,

sincerely!

ed

From: Edward Chen <edchenstudio@hotmail.com>
Sent: Wednesday, October 25, 2023 2:06 AM
To: JeanMarie DaSilva <jdasilva@benjamindevco.com>; BELINDA WHITE <Ba0651@aol.com>; casper@abtsthedunes.com <casper@abtsthedunes.com>; edchenstudio2020@gmail.com <edchenstudio2020@gmail.com>; Huan Zhang <huan0452@gmail.com>; Ed Chen <chenstudiopro@gmail.com>
Subject: Re: HPHOA5 - Notice of Violation & Assessment (Chen-6315 Ocean Avenue North)

Hi, JeanMarie,

today, I opened my mailbox, and I found your mail.

I read the bill, and you charged me $2300.

What is it? Please explain to me.

The very last letter you sent me was from on Sept 28 because the mailman delivered to my mailbox instead of my front door.

I called you about this matter, but because of the rainy days, I could only fix my yard on Saturday or Sunday and we agreed with it.
In the letter, it said if I fixed the issue within three business days, it could be ok without fine.
I did it. I sent the photos to you on the following Monday, 10/2/2023. I asked Belinda White to prove it.

But right now, you still charged me $2300,.....?

Of the picture you sent to me(It couldn't tell or prove that this was my house), there were several bugs on the wall and they came from the park where we live. Since the HOA didn't kill the bugs in the park next to where I live, they lived everywhere. We all suffered from the bugs' problem. You could ask anyone about the problem and they would tell you the same issue around their houses. If you walked in the park, bugs stayed on your hands and neck and legs anywhere. This was my true experience because I walked into the park with short plant and tried to find out the fact. But you used the wrong photo against the wrong person with the non related facts.

Of my front drive way, there are many died plants last over 4 years and HOA have never cared, and it was not replaced with new plants.

It was terrible, and ugly, but I continued to pay for the maintenance fee with nonstop payments. This was why I put some flowers seeds on, and it grew beautifully, and I believed that natural beauty would not harm anyone. This is natural beauty.

On, July 13, we visited Italy and we came back at July 28, because we missed the airplane on July 27 on Italy airport. As a result, we have never received any notice or letter until we came back from the trips.

Now I knew you sent me some notice or letters during my trip. Should I take full responsibility or actions during our family trip without know anything what your HOA stated on the unknow letter?

During the period of time of my family trip, Lynn destroyed partial of my garden and she continued to destroy my garden partially after we came back. I made a recording on the video and sent them to you for complaints but I had never gotten any feedback from HOA. HOA did nothing. The question is whether HOA allow Lynn to destroy my property. Please answer me. Yes, You did it.

My yard's issue was only having over grown seasonal flowers, and they are so beautiful, and I just cut them off. The issue was fixed.

Then, suddenly you were pointing the finger to me saying that I put the food all over my yard.....and created the fine.

I have never done so, and I cut all the plants to show you what it is. It is very clean. All I have are just seasonal flowers. What kind of foods anywhere are you talking about?

Now it is your term to prove what you said and what you did and explained to me clearly why you did so.

I did everything to fix what you requested within limited times, 3 business days and send you pictures to prove on the Monday, 10/2/2023 within our agreements under the raining conditions.

Could you tell me who and where and how and when you take the photos?

What is the relationship with the bug on the window and my yard? How could you have such a conclusion and the fine?

The fact is all the rats and bugs running on the park and the houses next to the park last as long as our neighborhood was created and it happened to New York City, and it is a well know issue to New Yorkers.

We paid for HOA every single month $192 as maintenance fee. Did HOA kill one of them? But all you did is trying to put your finger to any dislike neighbors, and told them you saw the bugs or rats in their houses. As a result, they would be punished and got a big fine. The fact is that all the bugs and rats running yard to yard and house to house from time to time. This is common sense that no one creates bugs and rats, and they live in nature as like we do in anywhere. This is what we call natural lives, and all the creatures live in the earth naturally and equally. If you want to destroy them, HOA have to do it because we already paid for HOA to do so. Don't you know the fact or understand it?

sincerely!

ed

Confirmation

Thank you for choosing to fly Norse! We can't wait to welcome you onboard

Confirmation number

SDZTYX

New York - JFK (JFK) to Fiumicino (FCO)

Manage reservation

Departing flight

Thu, 13 Jul **00:30 JFK** → **15:15 FCO** 8 hours 45 minutes

Economy Cabin, Economy Light
Flight N0402
Operated by Norse Atlantic Airways AS

Departing flight

Thu, 27 Jul **18:55 FCO** → **22:30 JFK** 9 hours 35 minutes

Economy Cabin, Economy Light
Flight N0401
Operated by Norse Atlantic Airways AS

Passenger Details

GUO HUA CHEN

Flight	JFK - FCO	**Flight**	FCO - JFK
Seat	21J	**Seat**	29J
Bags		**Bags**	

HUAN YUAN ZHANG

Flight	JFK - FCO	**Flight**	FCO - JFK
Seat	21H	**Seat**	29H
Bags		**Bags**	

ZHI JIE CHEN

Flight	JFK - FCO	**Flight**	FCO - JFK
Seat	22J	**Seat**	30J
Bags		**Bags**	

ZHI HENG HENRY CHEN

Flight	JFK - FCO	**Flight**	FCO - JFK
Seat	22H	**Seat**	30H
Bags		**Bags**	

Purchase summary

Fares	$2,648.0 0
Taxes	$596.24
Additional	$720.00

Total **$3,964.24**

Payment summary

Method of payment	**VISA ending 1219**
Date of purchase	**06 Apr 2023**
Amount	**$3,964.24**

From: Edward Chen <edchenstudio@hotmail.com>
Sent: Friday, October 27, 2023 2:33 PM
To: JeanMarie DaSilva <jdasilva@benjamindevco.com>; BELINDA WHITE <Ba0651@aol.com>; casper@abtsthedunes.com <casper@abtsthedunes.com>; edchenstudio2020@gmail.com <edchenstudio2020@gmail.com>; Huan Zhang <huan0452@gmail.com>; edchenstudio@hotmail.com <edchenstudio@hotmail.com>
Subject: Fw: HPHOA5 - Notice of Violation & Assessment (Chen-6315 Ocean Avenue North)

tell me what and how I lied, please..... The Picture I took .....you can see, This is my home.

Please don't insult me.....

Sincerely!

ed

From: Edward Chen <edchenstudio@hotmail.com>
Sent: Friday, September 29, 2023 3:02 PM
To: JeanMarie DaSilva <jdasilva@benjamindevco.com>; BELINDA WHITE <Ba0651@aol.com>; casper@abtsthedunes.com <casper@abtsthedunes.com>; edchenstudio2020@gmail.com <edchenstudio2020@gmail.com>
Subject: Re: HPHOA5 - Notice of Violation & Assessment (Chen-6315 Ocean Avenue North)

Dear JeanMarie DaSilva:

again,

"These were valid photos taken by the Board of the unsanitary conditions in your yard…with food scraps all over the ground, as well as flies all over your house, and your neighbors," this is a totally misleading statement for what it stated.

This is a big lie from Lynn, and this is terrible, and I keep my rights to lawsuit her.

Yes, please come to my home, and we can prove it.

Lynn attacked my property and killed my plants and made a big lie to the Board. I have all the video to prove it.

"the unsanitary conditions in your yard…with food scraps " This is a terrible attacked statement. Please prove it.

This is totally a very false statement. Please prove for what you stated.

This is a very wrong statement. How could you discriminate me year by year and day by day?

I need to set up an appointment to speak with the Board members to solve this problem, Please.

As I told you, JeanMarie, I am going to removal of a minimum of 40% of the tall, dense greenery.(this Sunday if without rain).

JeanMarie, you saw the photos I took this morning, what " food scraps" they are talking about? Why could they make it up?

please, speak out the fact and don't discriminate me all the time. Stop please! all my yard just grow flowers don't you see it?

looking at my beautiful flowers, how does it harm you? "These were valid photos taken by the Board of the unsanitary conditions in your yard…with food scraps all over the ground" ??????

sincerely!

ed

Dear JeanMarie DaSilva:

again,

"These were valid photos taken by the Board of the unsanitary conditions in your yard…with food scraps all over the ground, as well as flies all over your house, and your neighbors," this is a totally misleading statement for what it stated.

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looking at my beautiful flowers, how does it harm you? "These were valid photos taken by the Board of the unsanitary conditions in your yard…with food scraps all over the ground" ??????

sincerely!

ed

From:

<jdasilva@benjamindevco.com>
Sent: Friday, September 29, 2023 1:29 PM
To: 'Edward Chen' <edchenstudio@hotmail.com>; BELINDA WHITE <Ba0651@aol.com>; casper@abtsthedunes.com <casper@abtsthedunes.com>; edchenstudio2020@gmail.com <edchenstudio2020@gmail.com>
Subject: RE: HPHOA5 - Notice of Violation & Assessment (Chen-6315 Ocean Avenue North)

Mr. Chen - Please see the Board's response below:

The Board states, "It was saying 'more' than just a fine. The letter was explaining your violation for having food scraps all over your yard causing unsafe and unsanitary conditions."

These were valid photos taken by the Board of the unsanitary conditions in your yard…with food scraps all over the ground, as well as flies all over your house, and your neighbors.

Please advise us when you decide to completely clean up your yard, removing all food scraps, and removal of a minimum of 40% of the tall, dense greenery.

Should you not comply, fines will increase each month and the Board could take measures, necessary, to totally clean out your yard.

JeanMarie DaSilva
Office Manager
The Benjamin Companies
377 Oak Street, Suite 110
Garden City, NY 11530
516-745-0150 (x312) Office
516-745-5607 Fax
www.BenjaminCompanies.com

THE BENJAMIN COMPANIES
PREMIER REAL ESTATE DEVELOPER & MANAGER

From: Edward Chen <edchenstudio@hotmail.com>
Sent: Friday, September 29, 2023 9:41 AM
To: JeanMarie DaSilva <jdasilva@benjamindevco.com>; BELINDA WHITE <Ba0651@aol.com>; casper@abtsthedunes.com; edchenstudio2020@gmail.com
Subject: Re: HPHOA5 - Notice of Violation & Assessment (Chen-6315 Ocean Avenue North)

External Email: Use caution when clicking on links or opening attachments.

JeanMarie:

hi,

last night(9/28/2023) I opened my mail box, and I received your letter and it was just saying the fine to me again.

yes, the letter was unsigned but delivered to my mail box.

When I saw the pictures on the notice, it was a shock.

The setting on the pictures on your notice is not my yard. Who took these pictures?

I just took some photos of my yard this morning(9/29/2023). They are the photos of my great yard.

sincerely

ed

From: JeanMarie DaSilva <jdasilva@benjamindevco.com>
Sent: Tuesday, September 26, 2023 11:18 AM
To: 'Edward Chen' <edchenstudio@hotmail.com>
Subject: RE: HPHOA5 - Notice of Violation & Assessment (Chen-6315 Ocean Avenue North)

VIA EMAIL & CERTIFIED MAIL/RETURN RECEIPT

Attention: Guo Hua Chen

Please see (2) Notices of Violation & Assessment which require your immediate attention.

Unkept backyard - $400 monthly assessment
Unsanitary conditions rear yard - $500 assessment with $100 increase per month.

Thank you-

JeanMarie DaSilva
Office Manager
The Benjamin Companies
377 Oak Street, Suite 110
Garden City, NY 11530

516-745-0150 (x312) Office
516-745-5607 Fax
www.BenjaminCompanies.com

From: JeanMarie DaSilva
Sent: Tuesday, June 27, 2023 11:37 AM
To: 'Edward Chen' <edchenstudio@hotmail.com>
Subject: FW: HPHOA5 - Notice of Violation & Assessment (Chen-6315 Ocean Avenue North)

VIA EMAIL & CERTIFIED MAIL/RETURN RECEIPT

Attention: Guo Hua Chen

Please see the attached Notice of Violation & Assessment which requires your immediate attention.

Thank you-

JeanMarie DaSilva
Office Manager
The Benjamin Companies
377 Oak Street, Suite 110
Garden City, NY 11530
516-745-0150 (x312) Office
516-745-5607 Fax
www.BenjaminCompanies.com

From: JeanMarie DaSilva
Sent: Tuesday, June 20, 2023 12:44 PM
To: 'Edward Chen' <edchenstudio@hotmail.com>
Subject: FW: HPHOA5 - Notice of Violation (Chen-6315 Ocean Avenue North)

VIA EMAIL & CERTIFIED MAIL/RETURN RECEIPT

Attention: Guo Hua Chen

Please see the attached Notice of Violation which requires your immediate attention.

Thank you-

JeanMarie DaSilva
Office Manager
The Benjamin Companies
377 Oak Street, Suite 110
Garden City, NY 11530
516-745-0150 (x312) Office
516-745-5607 Fax
www.BenjaminCompanies.com

From: JeanMarie DaSilva
Sent: Thursday, June 8, 2023 12:45 PM
To: 'Edward Chen' <edchenstudio@hotmail.com>
Subject: HPHOA5 - Notice to Cure (Chen-6315 Ocean Avenue North)

VIA EMAIL & CERTIFIED MAIL/RETURN RECEIPT

Attention: Guo Hua Chen

Please see the attached Notice to Cure which requires your immediate attention.

Thank you-

JeanMarie DaSilva
Office Manager
The Benjamin Companies
377 Oak Street, Suite 110
Garden City, NY 11530
516-745-0150 (x312) Office
516-745-5607 Fax
www.BenjaminCompanies.com

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intended recipient. If you are not the intended recipient, you are hereby notified that any disclosure, copying, distribution, or the taking of any action in reliance on the contents of the contained information is strictly prohibited. In this regard, if you have received this email in error, please notify the sender immediately and delete the original. Any other use of the email by you is prohibited. Unless otherwise stated, opinions expressed in this email are those of the author and are not endorsed by the author's employer.

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_____

[Draft]

[Draft]

JeanMarie:

hi,

last night(9/28/2023) I opened my mail box, and I received your letter and it was just saying the fine to me again.

yes, the letter was unsigned but delivered to my mail box.

When I saw the pictures on the notice, it was a shock.

The setting on the pictures on your notice is not my yard. Who took these pictures?

I just took some photos of my yard this morning(9/29/2023). They are the photos of my great yard.

sincerely

ed

Dear Casper, Belinda White, and JeanMarie:

How are you? Qin is one of the board members in HOA for years.

Don't you see many photos(I took them at 10/25) coming from the view of Qin's home yard . I took Qin's home yard photos every year, and I realized that they were almost the same when I made a comparison of them. Learning from the view of the scene, we are able to see that a peach tree and a grape tree with support net almost occupies the whole home yard. Especially, the peach tree extending outside of the yard into the common area. Also, they are 6 feet high. There are great violations with HOA's bylaw definition all the years?

Casper, you should know it very well. It is a common sense what the board members did is giving out the standard guidelines and value to the whole community to follow, am I right? This is what I did and I followed him. Many HOA people did the something and violated the HOA bylaws if you walked into our neighborhood and you saw. I just believed that "if he can do it, and I can do the same." Actually, HOA's Bylaws should be fair and the same rules for every homeowner to follow. None can use it as a discriminated tool to hate others.

However, all I had was only the seasonal flowers and they grew from July and died at November. They always open beautiful flowers at September by season, and I believed the nature flowers' beautiful what we need. I had this flower plants last year and this year they just regrew by nature even though they died seasonally after November, 2022 . After I received the violation notice, I cut all the flower plants at Sept 29 2022 and Sept 30 2023 in order to meet the requirements and avoid the charges. I told Belinda White and she came to visited and confirmed it. How did my beautiful flowers and temporary plants harm the community? HOA charged my account from 07/22/22 Violation - Yard 100.00, 08/01/22 Violation - Yard 100.00 0.00 09/01/22 Violation (09/2022) 100.00 0.00 10/01/22 Violation (10/2022) 100.0011/01/22 Violation (11/2022) 100.00. I disagreed with the charges because you discriminated me unfairly, and I wrote the email against the charges by the time. But I got no response. In addition, I learned my bill statement, and I specially found out that HOA continued to charged me for October and November 2022, even though I cut my flowers and cleaned my yard at Sept 29 2022 to meet the requirements of the HOA violation notices.
How could you do that?

I read my HOA 2023 billing statement. 07/12/23 Violation - Sunflowers 100.00 0.00 408.00 08/01/23 Maintenance (08/2023) 192.00 0.00 08/01/23 Violation (08/2023) 100.00 Violation 09/01/23 Maintenance (09/2023) 192.00 0.00 700.00 09/01/23 Violation (09/2023) 100.00 0.00 800.00 09/26/23 Violation - Backyard Food Scraps 500.00 0.00 1,108.00 10/01/23 Maintenance (10/2023) 192.00 0.00 1,300.00 10/01/23 Violation - Backyard 400.00 0.00 1,700.00 10/01/23 Violation - Backyard Food Scraps

600.00 0.00 2,300.00. They are very wrongful charges. How could you charge me for something wasn't existing? I sent HOA a photo of my yard, and it had no sight of any food scraps in the similar position of the yard comparing to the complaint images from HOA 9/29/2023, that I took in the morning 9/29(Friday). I cut all my flowers and cleaned all my yard 9/30/2023 and Belinda White came and she confirmed it. How could HOA charge me for anything wasn't exiting on October 1? yes, I took the photos of my yard at 9/30 and 10/01/2023, and sent them out 10/2/2023 to JeanMarie, because I could only send the photos to JeanMarie 10/2/2023, Monday, but not the weekend, and the office was closed.

JeanMarie DaSilva
Office Manager
The Benjamin Companies
377 Oak Street, Suite 110
Garden City, NY 11530
516-745-0150 (x312) Office
516-745-5607 Fax
www.BenjaminCompanies.com

JeanMarie is an office Manager working for HOA, and we agreed with the day to handle the clean during the raining days, and I told her that I could clean my yard on Sunday if no raining, 10/1/2023 by phone. The Saturday Morning (9/30) was raining but the rain stopped at afternoon. Therefore, I cut all the flowers and clean my yard in the afternoon and evening, and Belinda white walked with me to my yard and she confirmed what I did. How could you fine me and charged me by something non-exciting ? It was terribly wrong. Please correct it.

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Could our respectful board members do against HOA's rules and bylaws again and again?

Why? This is discrimination and you only target on me and my family as a houseowner, and you just totally broke my Americans dream, and it just proved that we were living in a very unfair and discriminate community. Please view back the very last Friday Email with all photos I took this week within the attachment. Thank you!

Sincerely!

ed

From: Edward Chen <edchenstudio@h

Please read it carefully as what it stated on the violation notice.

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????

Sincerely!

ed

Edward Chen

JeanMarie DaSilva;**+5 others**

Dear JeanMarie:

How are you? One again, I requested to make an appointment to meet and speak with a Broad member, Casper recording to the discrimination and the wrongful charge. This is my third time requesting the meeting.

Sincerely!

Ed

From: Edward Chen <edchenstudio@hotmail.com>
Sent: Monday, October 2, 2023 8:51 AM
To: JeanMarie DaSilva <jdasilva@benjamindevco.com>; BELINDA WHITE <Ba0651@aol.com>; casper@abtsthedunes.com <casper@abtsthedunes.com>; edchenstudio2020@gmail.com <edchenstudio2020@gmail.com>
Subject: Re: HPHOA5 - Notice of Violation & Assessment (Chen-6315 Ocean Avenue North)

Good morning, JeanMarie,

Yes, I fixed it Sunday as I promised to you.

please have a view of the attachments.

Yes, I told Belinda White about this issue and the fixed, and she came to my home and she would provide you more photos of my yard.

Sincerely!

ed

Dear Casper, Belinda White, and JeanMarie:

How are you? Qin is one of the board members in HOA for years.
Don't you see many photos(I took them at 10/25) coming from the view of Qin's home yard . I took Qin's home yard photos every year, and I realized that they were almost the same when I made a comparison of them. Learning from the view of the scene, we are able to see that a peach tree and a grape tree with support net almost occupies the whole home yard. Especially, the peach tree extending outside of the yard into the common area. Also, they are 6 feet high. There are great violations with HOA's bylaw definition all the years?

Casper, you should know it very well. It is a common sense what the board members did is giving out the standard guidelines and value to the whole community to follow, am I right? This is what I did and I followed him. Many HOA people did the something and

violated the HOA bylaws if you walked into our neighborhood and you saw. I just believed that "if he can do it, and I can do the same." Actually, HOA's Bylaws should be fair and the same rules for every homeowner to follow. None can use it as a discriminated tool to hate others.

However, all I had was only the seasonal flowers and they grew from July and died at November. They always open beautiful flowers at September by season, and I believed the nature flowers' beautiful what we need. I had this flower plants last year and this year they just regrew by nature even though they died seasonally after November, 2022 . After I received the violation notice, I cut all the flower plants at Sept 29 2022 and Sept 30 2023 in order to meet the requirements and avoid the charges. I told Belinda White and she came to visited and confirmed it. How did my beautiful flowers and temporary plants harm the community? HOA charged my account from 07/22/22 Violation - Yard 100.00, 08/01/22 Violation - Yard 100.00 0.00 09/01/22 Violation (09/2022) 100.00 0.00 10/01/22 Violation (10/2022) 100.0011/01/22 Violation (11/2022) 100.00. I disagreed with the charges because you discriminated me unfairly, and I wrote the email against the charges by the time. But I got no response. In addition, I learned my bill statement, and I specially found out that HOA continued to charged me for October and November 2022, even though I cut my flowers and cleaned my yard at Sept 29 2022 to meet the requirements of the HOA violation notices.
How could you do that?

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From: Edward Chen <edchenstudio@hotmail.com>
Sent: Sunday, October 29, 2023 2:38 PM
To: edchenstudio2020@gmail.com <edchenstudio2020@gmail.com>; JeanMarie DaSilva <jdasilva@benjamindevco.com>; BELINDA WHITE <Ba0651@aol.com>; casper@abtsthedunes.com <casper@abtsthedunes.com>; Huan Zhang

<huan0452@gmail.com>; Ed Chen <chenstudiopro@gmail.com>; Edward Chen <edchenstudio@hotmail.com>
Subject: Re: HPHOA5 - Notice of Violation & Assessment (Chen-6315 Ocean Avenue North)

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Sincerely!

ed

Edward Chen

caspercacioppo@aol.com;**+6 others**

Dear Casper and JeanMarin:

"I voted to keep fees, as charged, because he does the same thing every year....and he out-and-out lied about the food scraps and flies all over his property and the adjacent property.

However, I defer to Qin and Belinda. "

it was very nice to say so, view these photos, I just took them this week of our great community with a special culture, "I can do it, but you cann't. " A group of white people just target at me over 8 years. This is terrible discrimination.

you knew it well and we spoke about it several years ago when I support you to be a board member, but you just ignored the fact but only target on me right now, and it is very sad.

please view all the photos and maybe one is your home or another board member's home.

what the Justice are you talking about?

if you found out any fake images or photos, please, let me know and I can walk with you and find it out, good deal?

Could you tell me the term of keep and unkeep? or 4 fees high..... bylaws for them or only for me or everyone? or for the white or the colors? You promised to me to fight for the discriminations, but now you just discriminated me and target me very wrongfully.

Please view back and study all my emails carefully. You could have a wonderful picture and understand what I am talking about, yes, you knew it well. but I just remind you.

now I answered your question," because he does the same thing every year...."

because I want you to know that you broke your promise to us, for eight years, the treatments to us have no changes, and every single year I have been suffering for the discrimination. But in fact, many Asian families suffered from the discriminations in this neighborhood as I knew. Lynn destroyed my yard and my property twice, you knew it but you just ignored it because I sent you the videos. But you just said nothing. This is your job and responsibilities to protect your house owners because we paid for HOA and you are one of board members in the HOA.

Sincerely!

ed

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Image_20231027110808.jpg

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